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Merger Clearance Timelines Are Lengthening, Here's How to Plan Around It

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Deal teams that built their timelines around 2019-era merger review are getting caught off guard. Regulators across the US, EU, and UK have all added review stages, and none of them have gotten faster.

Second requests are becoming the norm, not the exception

A second request used to be a signal that something specific worried the regulator. Now it is closer to a default step for any deal above a certain size, regardless of how clean the overlap looks on paper. Treating it as an edge case in your planning is the single most common mistake we see.

“A walk-away date set before counsel has assessed the regulatory picture is a common source of late renegotiation.”

Build the timeline into the deal structure from day one

The financing commitment, the walk-away date, and the regulatory strategy all need to be negotiated together, not sequenced. A walk-away date set before counsel has assessed the regulatory picture is one of the most common sources of late-stage renegotiation.

Multi-jurisdictional filings compound the delay

A deal that clears in one jurisdiction can still stall waiting on another, and regulators increasingly compare notes. Filing strategy across jurisdictions needs to be coordinated centrally, not handled as parallel workstreams by local counsel working from different playbooks.

None of this makes deals impossible, it makes the planning conversation earlier and more honest. The clients who build in realistic timelines from the term sheet stage are the ones who don't end up renegotiating price over a delay nobody saw coming.

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